

In addition, since entry of those orders, Plaintiff has filed a notice of appeal relating to the judgment and the Court's earlier orders.

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order...." (Cal. Code Civ. Proc. § 916 (a); *Varian Med. Systems, Inc. v. Delfino* (2005) 35 Cal4th 180, 189.) An appeal is "perfected" when a notice of appeal is timely filed. (*Kroger Co. v. Workers' Comp. Appeals Bd.* (2012) 210 Cal.App.4th 952, 959.) A stay on appeal from an appealable order deprives the trial court of jurisdiction to adjudicate a motion for reconsideration of that order, because the motion for reconsideration is not collateral to the appealed order. (*Young v. Tri-City Healthcare Dist.* (2012) 210 Cal.App.4th 35, 51-53.)

Plaintiff's filing of the notice of appeal further emphasizes that the Court does not have jurisdiction to reconsider its earlier ruling.

Sanctions

Repeated attempts to relitigate claims that have been finally determined can lead the Court to deem the Plaintiff a vexatious litigant. (Cal. Code Civ. Proc. § 391 (b)(2).) In addition, the filing of frivolous and meritless motions can lead to Plaintiff being sanctioned. (See e.g. Cal. Code Civ. Proc. §§ 128.5, 128.7.) The court cautions Plaintiff not to relitigate claims that have been finally determined, and not to file frivolous and meritless motions. Plaintiff has filed the same motion four times. This order marks the fourth time the court has denied a motion by the Plaintiff asking the trial court to rescind, reconsider, reverse, vacate or in any way revisit its March 5, 2025, order of Judgment in Favor of Defendants and against Plaintiff as to all causes of action.

Conclusion

Plaintiff's motion is **denied**.

2. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION IN RE: TO STRIKE 2ND AMENDED CROSS-COMPLAINT**
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.
TENTATIVE RULING:

The Court on its own motion continues the hearing to Feb 6, 2025 at 9:00 am in Dept. 32.

3. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
HEARING ON DEMURRER TO: TO 2ND AMENDED CROSS-COMPLAINT
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.
TENTATIVE RULING:

The Court on its own motion continues the hearing to Feb 6, 2025 at 9:00 am in Dept. 32

4. 9:00 AM CASE NUMBER: C23-03274
CASE NAME: CARLOS CARRILLO MOLINA VS. RODRIGO MURILLO
*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: CARRILLO MOLINA, CARLOS
TENTATIVE RULING:

The motion of Plaintiff for Leave to File a First Amended Complaint was properly served and no opposition was received. The motion is granted. Plaintiff shall file and serve the proposed First Amended Complaint no later than February 9, 2026. Defendants shall have 30 days after being served with the First Amended Complaint to file a responsive pleading. (Code of Civil Procedure § 471.5(a))

5. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S THIRD AMENDED COMPLAINT
FILED BY: SAN RAMON REGIONAL MEDICAL CENTER
TENTATIVE RULING:

Before the Court is Defendant San Ramon Regional Medical Center ("Defendant," "SRRMC," or "the Hospital")'s motion to strike. The motion to strike relates to Plaintiff Niraj Gandhi ("Plaintiff" or "Gandhi")'s Third Amended Complaint for (1) Negligence, (2) Fraud and Misrepresentation, and (3) Intentional Infliction of Emotional Distress, and seeks to strike the amended complaint in its entirety or, in the alternative to strike Plaintiff's prayer for punitive damages.

Defendant moves to strike Plaintiff's Third Amended Complaint in its entirety on the ground that it was not timely filed; in the alternative, Defendant moves to strike Plaintiff's prayer for punitive damages on the ground that Plaintiff failed to state sufficient facts to allege punitive damages in that he failed to show by clear and convincing evidence that Defendant (1) knowingly retained an unfit employee, or (2) authorized or ratified wrongful misconduct.

Plaintiff, who is an *in propria persona* litigant, opposes Defendant's motion to strike the complaint in its entirety on grounds of *res judicata* and the doctrine of law of the case in that the Court already accepted the Third Amended Complaint; the Plaintiff opposes Defendant's motion to strike his prayer for punitive damages on the grounds that he expressly alleged vicarious liability and ratification using specific facts to support his legal conclusions.

Defendant's motion to strike Plaintiff's Third Amended Complaint in its entirety is denied, and the motion to strike Plaintiff's prayer for punitive damages is granted without leave to amend.

Factual Allegations and Background